

23CHCV00750 23CHCV00750

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-08-17

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Case Number: 23CHCV00750 Hearing Date: August 17, 2026 Dept: F43

Dept. F43

Hearing Date: 08-17-26

Case # 23CHCV00750, Leyva, et
al. v. Sylmar Health & Rehabilitation Center, Inc. et al.

Trial Date: 09-28-26

MOTION TO COMPEL

COMPLIANCE WITH A DEPOSITION SUBPOENA

MOVING PARTIES: Defendants Sylmar Health & Rehabilitation
Center, Inc. dba Sylmar Health and Rehabilitation Center and Golden State
Health Centers, Inc.

RESPONDING PARTY: No opposition was filed.

RELIEF REQUESTED

Order compelling non-party UCI Health to produce
all documents in response to a deposition subpoena served by defendants Sylmar
Health & Rehabilitation Center, Inc. dba Sylmar Health and Rehabilitation
Center and Golden State Health Centers, Inc. on January 23, 2026.

RULING: Motion is granted.

SUMMARY OF ACTION

This elder abuse action arises out of the care and treatment of plaintiff Richard Leyva at defendant Sylmar Health and Rehabilitation Center, Inc.'s 24-hour nursing facility. Defendant Sylmar Health is a locked psychiatric facility whose residents were incarcerated, many of whom are under the care of court-appointed conservators. On March 14, 2023, Mr. Leyva filed a complaint alleging elder abuse, negligence, violation of California Health and Safety Code section 1430, subdivision (b), and willful misconduct. Mr. Leyva passed away on August 11, 2025. On November 7, 2025, Mr. Leyva's mother and successor-in-interest, Daleen Leyva, filed a First Amended Complaint against defendants Sylmar Health & Rehabilitation Center, Inc. and Golden State Health Centers, Inc. (Defendants), asserting an additional wrongful death claim. Ms. Leyva alleges defendant Sylmar Health and the owner of the facility failed to protect Mr. Leyva from multiple falls, the final of which resulted in a traumatic brain injury.

On January 23, 2026, Defendants personally served UCI Health with a deposition subpoena for production of all medical records for Mr. Leyva. (Declaration of David Alfani ¶ 4, Exh. A.) Defendants emailed Plaintiff's counsel a Notice to Consumer on January 14, 2026. The production deadline was February 12, 2026. No records have been produced and no objection was served.

On June 16, 2026, Defendants filed the instant motion to compel non-party UCI Health's compliance with the deposition subpoena. No opposition has been filed.

MEET AND CONFER

A motion to compel production of documents pursuant to Code of Civil Procedure section 2025.480, must be accompanied by a meet and confer declaration "stat[ing] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., §§ 1985.3, subd. (g), 2016.040, 2025.480, subd. (b).) "Meet and confer" means in person or via phone, not by letter or email. (Department F43 Courtroom Information, at p. 2.)

A review of the moving papers indicates Defendants

attempted to contact UCI Health's custodian of records multiple times through its retrieval agent before filing this motion.

(Alfini Decl., Exh. B.) As early

as May 11, 2026, defense counsel stated failure to comply would result in a motion. (Id., Exh. B at pp.

3-4.) The retrieval agent spoke with UCI

Health's staff on May 21, 2026, with the staff representing that they needed an

additional week to provide the requested production. However, no production ever occurred. Therefore, the "meet and confer" requirement

is met.

ANALYSIS

A. Compelling

Compliance with a Deposition Subpoena to Produce Business Records

"A deposition subpoena that commands only the production of business records for copying . . . shall be directed to the custodian of those records or another person qualified to certify the records. It shall command compliance in accordance with Section 2020.430 on a date that is no earlier than 20 days after the issuance, or 15 days after the service, of the deposition subpoena, whichever date is later." (Code Civ. Proc., § 2020.410, subd. (c).)

If a nonparty fails to comply with a deposition subpoena for production of business records, the subpoenaing party may move to compel the nonparty's compliance within sixty (60) days after the deposition record is completed. (See Code Civ Proc., §§ 1987.2, subd. (a), 2025.480, subds. (a)-(b); Unzipped Apparel, LLC v. Bader (2007) 156 Cal.App.4th 123, 135-136.) The subpoenaing party may make the motion pursuant to Code of Civil Procedure sections 2025.480 or 1987.1. "The party requesting a consumer's personal records may bring a motion under Section 1987.1 to enforce the subpoena within 20 days of service of the written objection." (Code Civ. Proc., § 1985.3, subd. (g).) For business records subpoenas, the "record is complete as of the date set for production" in the subpoena. (Unzipped Apparel, LLC v. Bader (2007) 156 Cal.App.4th 123, 135-136.)

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production."

(Code Civ. Proc., § 2025.480, subd. (a).) If a subpoena requires a nonparty to produce business records such as "books, documents, electronically stored information, or other things," the court may, upon motion by a party, order the nonparty to comply with the subpoena "upon those terms or conditions as the court shall declare, including protective orders."

(Code Civ. Proc., § 1987.1, subds. (a)-(b).)

Here, no objection was filed, and the record was complete on the production date: February 12, 2026 at 10:00 a.m. Because the instant motion was filed over four months after the subpoena was served and production was required, the motion is timely.

1. The

Notice to Consumer was timely and properly served.

Before the date for production of personal records, the subpoenaing party must serve on the consumer whose records are being sought, a copy of the subpoena duces tecum, and a proof of service as indicated in paragraph (1) of subdivision (c). (Code Civ. Proc., § 1985.3, subd. (b).) The notice must be served: (1) To the consumer personally, at his or her last known address, or, if he or she is a party, to his or her attorney of record; (2) Not less than 10 days prior to the date for production specified in the subpoena duces tecum, plus the additional time provided by Section 1013 if service is by mail. (3) At least five days prior to service upon the custodian of the records, plus the additional time provided by Section 1013 if service is by mail. (Code Civ. Proc., § 1985.3, subd. (b)(1)-(3).)

Defendants satisfied the consumer notice requirements because the Notice to Consumer and copies of the deposition subpoena were served on Plaintiff's counsel by email on January 14, 2026. (Alfini Decl., Exh. A at pp. 6-8 [emailing

attorney Michael F. Moran].)

2. The deposition subpoena was timely served on UCI Health.

“If, under Section 1985.3 . . . , the one to whom the deposition subpoena is directed is a witness, and the business records described in the deposition subpoena are personal records pertaining to a consumer, the service of the deposition subpoena shall be accompanied either by a copy of the proof of service of the notice to the consumer described in subdivision (e) of Section 1985.3, or subdivision (b) of Section 1985.6, as applicable, or by the consumer’s written authorization to release personal records described in paragraph (2) of subdivision (c) of Section 1985.3, or paragraph (2) of subdivision (c) of Section 1985.6, as applicable.” (Code Civ. Proc., § 2020.410, subd. (d).)

According to the moving papers, the subpoena was personally served on a person named “UCI Health” on January 23, 2026, nine days after the consumer notice was served. (Alfini Decl. ¶ 4, Exh. A at p. 11 [service agent received the subpoena on January 14, 2026].) Thus, the subpoena was timely. However, the attached Proof of Service does not indicate whether an actual person was served, and the Proof of Service document is not signed by the process server. Based on defense counsel’s emails with its retrieval agent (RecordTrak), UCI Health confirmed receiving the subpoena on January 23, 2026, exactly 20 days before the production was requested. (Alfini Decl., Exh. B at pp. 3-4.)

Therefore, the subpoena was timely served.

3. Defendants demonstrate “good cause” exists for the requested production.

Mr. Leyva received treatment at UCI Health, including a cranioplasty in August 2025. (Alfini Decl. ¶ 7.) The procedure occurred about seven to ten days before Mr. Leyva’s death. (Ibid.) According to Defendants, UCI Health’s complete medical records for Mr. Leyva are directly relevant to Defendants’ liability as to Plaintiff’s claims, whether Defendants

have valid defenses to the issues in this matter, and are essential for determining the cause of Mr. Leyva's injuries and subsequent death as well as determining whether trial preparation, expert review, and damages analysis. (Mot. at p. 5:10-16.)

The court finds, Defendants demonstrate "good cause" for the requested records.

Because Defendants have met their burden and UCI Health has not complied with the deposition subpoena, the court grants Defendants' motion and orders UCI Health to produce the documents requested in the January 23, 2026, deposition subpoena within five (5) days of the issuing of this order.

CONCLUSION and ORDER

Defendants Sylmar Health & Rehabilitation Center, Inc. and Rehabilitation Center's and Golden State Health Centers, Inc.'s motion to compel non-party UCI Health's compliance with the Deposition Subpoena for Production of Business Records is granted.

UCI Health is ordered to produce the documents requested in the deposition subpoena served on January 23, 2026, within five (5) days of the issuing of this order.

Defendants to give notice.